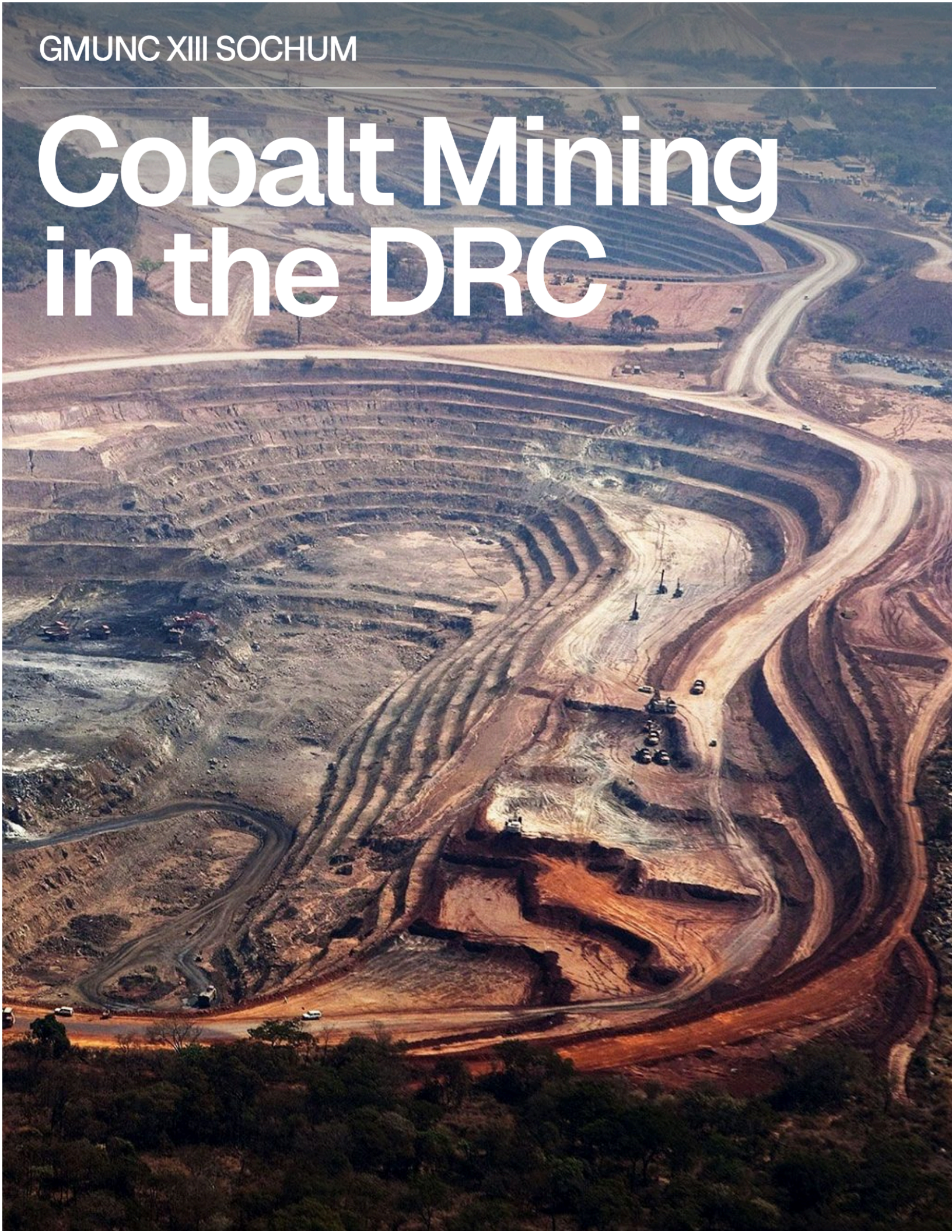
GMUNC XIII SOCHUM

Cobalt Mining in the DRC



I. Conference Information

It's our immense pleasure to welcome all delegates to the Gunn Model United Nations Conference XIII! Before delegates start reading this background guide, please remember position papers are due on October 17 to be considered for a research award and a final deadline on October 23 for general awards (all awards except research awards). If you do not submit a position paper by this date by 11:59, you will **NOT** be eligible for any committee awards. For questions on position paper requirements please check out the position paper writing guide on the GMUNC website (https://gmunc.org/conference). In addition we will not tolerate any use of AI, if a sufficient detection of AI is found you will be disqualified from **ALL** awards and your delegation will be made aware. Please send position papers in **PDF format** (we will not accept sharing of google docs or any other methods) and committee-specific inquiries to the committee email address: gmuncxiiicongo@gmail.com.

II. Chair Bios

Head Chair



Dear esteemed Delegates,
My name is Alex Himmelbauer, and I am excited to be your co-chair for this GA committee! Currently, I am a senior at Gunn High School. This is my third year with Gunn MUN, and I am lucky to be able to chair this committee. I hope to continue to participate in MUN for many years to come!

Here is some info about me: Besides MUN, some of my interests outside of Gunn include rock climbing, tennis, and watching movies that are highly rated on letterboxd (a recent interest of mine).

I hope (and know) that this committee will run smoothly!! I can't wait to meet all the wonderful delegations and learn about and experience all of your incredible resolutions. Throughout my MUN journey, I have gotten to know many different and amazing people, and I hope you will too. Now that we are introduced, you should now go write an extraordinary position paper, and win that research award (and potentially more, since you actually researched the topic).

Good luck,
Alex Himmelbauer

Co-Chair Bio:

Hi, my name is Owen Cheng and I'm a junior at Gunn High School. I'm excited to be a co-chair for this committee and I can't wait to see all of you! This is my second year doing Model UN and my first time chairing a committee.



Outside of MUN, I devote my time to clubs (if anyone is interested in starting a machine learning club at their school, contact me) and student government. In my free time, if I'm not doomscrolling, I'm probably outside running or pretending to be good at design.

I hope all of you will enjoy your time in this committee (or pretend to at least) and spend an adequate time writing your position papers because my favorite delegate is the one who's disgustingly knowledgeable. I hope you find cobalt mining as interesting as I do so take your time reading the position paper. I spent time on it.

Have a beautiful, spectacular or magnificent day,

Owen

III. Foreword

Delegates, we are pleased to introduce you to our background guide on The Mineral Crisis in the DRC. We have put tens of hours into researching and writing this guide, so we hope you find some use in it! Over the course of your own research, we hope you will gain an understanding of the topic in all of its subtleties, and bring that extensive knowledge to the committee. Throughout the conference, your two chairs hold an expectation that you please conduct **research for your paper thoroughly**, we promise it will be worth it. We want to keep respectful debate going throughout the entire MUN experience, so please participate prepared to **listen and learn**.. Your chairs are always here to help, don't hesitate to reach out via our emails in our descriptions/committee email. We have confidence that whether this GMUNC is your first conference or 10th, that you will have tons of fun. Thank you for participating, happy writing!

IV. Introduction

The Third Committee, informally known as the Social, Humanitarian, and Cultural Committee (SOCHUM), is one of the six "Main Committees" in the UN. SOCHUM's focus is broad, but it includes monitoring human rights, protecting refugees, and combatting racial discrimination. Additionally, it's important to understand the separation between the Third Committee and the Human Rights Council (HRC). The HRC uses Special Rapporteurs along with Independent Experts to research and report on human rights issues around the globe. However, it is incapable of passing resolutions. That role falls on SOCHUM, who can use HRC findings to draft resolutions. Like other committees, SOCHUM has *no enforcement power*. None of its resolutions are legally binding. The committee's power comes from setting standards that countries can follow when implementing laws.

V. Background Information



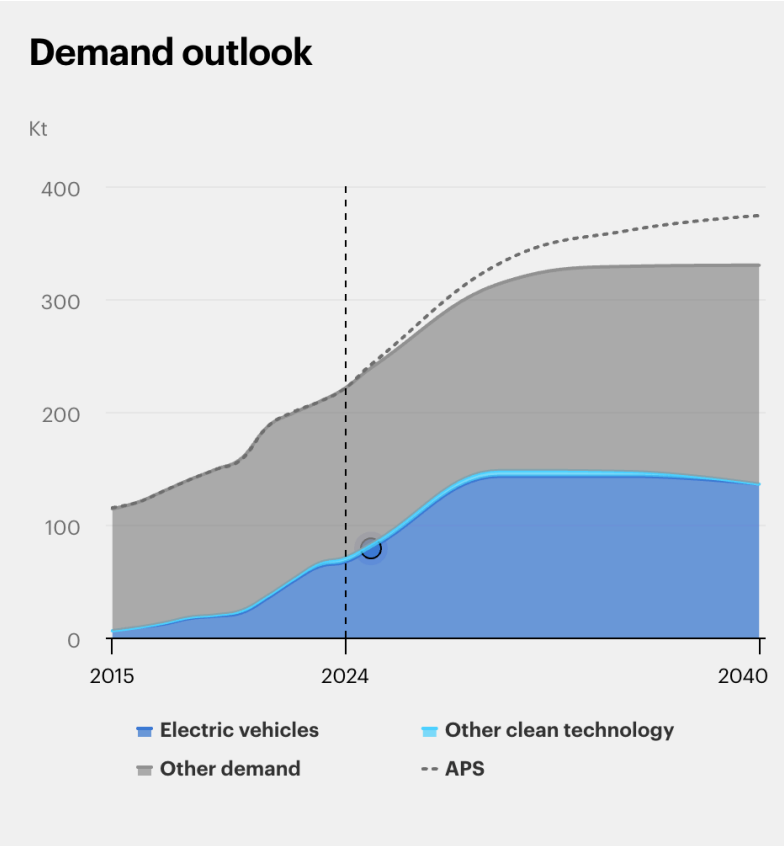
Image: Bibatama Mining Concession, the largest coltan mine in the African Great Lakes region, has been under M23 control since April 2024. Here, during a previous visit by the UN Special Representative [MONUSCO].

Cobalt is one of the most critical minerals in today's age. In a rapidly electrifying world, it is used in lithium-ion batteries for efficiency and stability [1]. However, 70% of mined cobalt originates from the Congo[1], one of the world's least developed countries where human rights abuses have been rampant [2].

Cobalt's vitality originated at the end of World War II, when the two global superpowers the U.S.S.R. and the U.S. began to use it in jet engines and nuclear weapon propulsion systems. Because of the mineral's importance during the Cold War, the newly independent Belgian Congo was caught in a power struggle between the two nations. Conflicts including the Angolan Civil War, the Congo Wars, and the Katangan conflict impacted the nation's growth and cobalt

[1] Cobalt extraction primarily happens in the Copperbelt (because cobalt is often found next to copper). The Copperbelt includes the Katanga region of the DRC and parts of Zambia. For clarity's sake, we will refer to the area of interest as the Congo or the DRC.

production. After the end of the Cold War, the movement of Western companies out of the Congo led to China's establishment in the sector, allowing it to establish a near monopoly in cobalt refinement. Since then, this highly contested mineral has become even more integral in the global economy, with mining in the Democratic Republic of Congo (DRC) growing at an annual rate of 20% from 1995 to 2020 [3]. Today, cobalt can be found in computers, cars, and data centers. Without it, the global economy would collapse.



Demand of cobalt projections from 2015-2040 [IEA].

The focus of this meeting is to address the multitudes of human rights abuses that occur during cobalt procurement. Mining in the DRC takes on two forms: large scale mining (LSM) and artisanal and small-scale mining (ASM). LSM involves mechanized and industrial-scaled mining usually practiced by an international company. On the other hand, ASM involves semi-mechanized or manual labor practiced by small groups. ASM can occur at LSM sites

legally or illegally. As of now, ASM produces a fraction of usable cobalt compared to LSM but it is appreciable enough to be included when examining human rights abuses in this sector.

A survey found that 78% of mine workers reported experiencing forced labor. Examples of forced labor include being unable to refuse hazardous work, abusive overtime, and withholding wages [4]. Forced labor was especially prevalent among younger workers and workers whose main designation was to dig for ores. According to the report, 92.1% of workers aged between 18-24 and 86.0% of workers who mined for ores experienced some type of forced labor.

Health and safety is another common issue among miners. 84% of workers reported inhaling fumes without strong protective equipment. Constant exposure to elevated concentrations of cobalt in the air has many cardiovascular effects including asthma, decreased lung function, and potentially death [5]. These dangers become even more acute for ASM workers, who report being shot by security forces, drowning, and whipping when attempting to enter LSM sites.



Children seen laboring knee-deep in mud [Humanium].

The most widely documented human rights abuse is child labor. Of the 255,000 people working in cobalt mines, 44,000 of them are children. In many cases, children are forced to labor in the mines instead of going to school because of familial necessity. Despite its vast amount of mineral riches, 85.2% of the DRC population lives in poverty[2] [6]. Children must work in order for the family to survive, putting school out of the picture. Blanket bans on child labor are also ineffective. By illegalizing child labor, it leads the practice to be more discrete, which could lead to even more exploitation [7]. Delegates must consider solutions which offer safety nets for struggling families. For example, offering financial assistance for families who enroll their children in schools (called conditional cash transfers) and removing school costs are proven ways to reduce child labor. Corporate complicity in child labor has also led to international action. A 2024 case brought against Tesla, Alphabet[3], Apple, Dell and Microsoft by former child miners (and representatives of deceased miners) sought to hold the five companies liable for child labor because they bought massive amounts of cobalt from DRC suppliers. However, the U.S. D.C. The Circuit Court of Appeals ruled the companies could not be held liable due to the fact that it was a simple global market transaction and the companies held no interest in the suppliers who were the ones partaking in child labor [8].

Demand for cobalt also fuels instability which leads to even more exploitation. After the Rwandan Civil War (where the infamous Rwandan Genocide occurred), a mass insurgency of Rwandan-backed M23 rebels took control of Eastern parts of the DRC. In 2025, Goma, the capital city of the North Kivu province, was taken by the group. Groups like these force local communities through violent methods (including sexual violence and forced evictions) to obtain cobalt as a way to fund their operations. The minerals are then sent back to Rwanda, where they

[2] Defined as earning less than $3 per day.
[3] The parent company of Google

are mixed with the “legitimate” supply and then sold on the market. The rebels can then use these profits to continue their militaristic operations in the DRC, spinning the flywheel of continuous exploitation and destabilization [9].

Finally, the rapid demand for cobalt has led to more mine sites, displacing thousands of people in the process. After determining that an area has a high concentration of minerals, multinational companies and the national government use various methods to clear the place of residents. Many times, residents receive little compensation, forcing them to purchase homes smaller in size or lacking basic utilities. During the moving process, residents have reported cases of burnings, physical beatings, and sexual violence committed by company agents and soldiers [10].[4]



[4] A house reduced to rubble as workers make way for another mine site.

VI. Past International Actions

Spurred by demand for cobalt and heavy metals in the late 2000s and early 2010s, international bodies began to pass major regulations and resolutions ensuring the trade remained ethical.

- Resolution 1896 (2007)

  The first major UN resolution passed on the growing illegal heavy metal/mineral trade, within which the Security Council consulted a board of experts on the DRC to recommend paths forward on the crisis. They came up with several; importers and processing industries had to follow outlined guidelines set by the board and reiterating concerns of armed groups with a presence in the DRC. This 2009 resolution set a precedent for increased scrutiny on armed action in the region, and led to several further resolutions to follow in close succession.

- Resolution 1952 (2010)

  This resolution set the propositions from the board of DRC experts into action. The security council had received the recommendations from the advisories, now they had to pick which to implement. First, they extended the arms embargo established by Resolution 1493 (2003) by one year—which initially targeted the violence in Ituri, North and South Kivu— and linked it to the growing illegal mineral trade run by armed groups. In addition, by increasing the size of the board to 6 members, introducing an expert on natural resources, this resolution specifically geared the earlier efforts to reduce armed groups' presence towards reducing the illegal mineral trade.

Paragraph 9 was the most important section of the resolution. It introduced comprehensive outlines defining what warranted sanctions towards individuals supporting the trade. Alongside the framework, the resolution required States to take the steps to raise awareness of the due diligence guidelines and urge importers to follow the outlined regulations. In determining sanctions based on designating an individual or entity as supporting illegal armed groups through illicit trade of natural resources, the council could now see whether the entity had exercised due diligence and followed the guidelines consistent with those laid out in the resolution. The decision to follow a due diligence strategy created new pressure on companies to comply with the UN regulations, and gave the resolution an immediate legal effect.

- US Dodd-Frank Act (2010)

Passed by the US Congress, the Dodd-Frank Act targeted militia groups in the DRC, aiming to prevent profits from mining operations from funding their fight. It implemented corporate supply line requirements specifically on DRC mining and further affected companies producing or contracting products using tantalum, cobalt, tin, gold and tungsten. It involved the SEC taking three steps: companies had to conduct a Reasonable Country of Origin Inquiry (RCOI), to determine if their products used resources from the DRC region, then obtain a private sector audit of its Conflict Minerals Report, and lastly certify it had conducted the audit. The bill resulted in several business designations, "DRC Conflict Free," "Not Found to Be DRC Conflict Free," and "DRC Conflict Undeterminable."

Dodd-Frank had some impact, an open letter from 41 civil society groups in North Kivu stated: "Thanks to the Dodd-Frank Act, Eastern DRC has to date more than 220 certified green mining sites, more than 300 mining police officers trained and deployed to

secure mining sites, an independent audit mechanism, and a regional certification system.". However, the amount of exports out of the region sharply dropped following the act, due to government-enacted mining halts and over restrictive interpretations of the law, forcing many to find new avenues of work.

VII. Current Situation

As cobalt demand continues to rise, it becomes an imperative that the world ensures human rights abuses are not committed along the way. During this meeting, our solutions will focus on addressing the following issues:

- Complicity: Who should take responsibility for the missteps taken in the DRC and how can we amend them? This could be anything from establishing recommendations for companies (like Apple and Alphabet) to ethically source their cobalt to setting compliance standards for mining companies in the region. Some bodies have a lot to lose based on where responsibilities are set. For example, China, who holds most of the cobalt refineries, could push back on mining standards if it means their supply becomes restricted.
- Protections: Locals are forced into situations where human rights abuses are committed by chance or necessity. How does the UN provide economically viable solutions so that locals can achieve basic living standards without laboring in hazardous mines? A special focus should be placed on child labor when considering solutions. Additionally, how should locals be protected from mine site establishments?

Your solutions should be **grounded** to your country's perspective and reality. This means that your beliefs should be left to the side when considering your country's goals. Furthermore, stringent restrictions harm the global economy, which could put other people's lives at risk.

VIII. Country Positions OR Individual Positions

- The Democratic Republic of the Congo

  The DRC's position has shifted from passive supplier to assertive sovereign. In February 2025, Kinshasa suspended all cobalt exports for eight months before reimposing quotas at less than half of 2024 output levels, the continent's most ambitious assertion of mineral sovereignty in decades. This demand includes local processing, more value retained domestically, and an end to a system where refiners capture profits while Congolese miners bear the risk. The December 2024 criminal complaints filed against Apple's subsidiaries in France and Belgium signal a government willing to use international legal mechanisms as leverage rather than waiting on voluntary corporate goodwill [11].

- The United States

  The US stance is driven by strategic competition with China rather than humanitarian concern. The current administration frames the DRC crisis through the lens of critical minerals security, viewing the country as an investment opportunity that can simultaneously weaken Chinese dominance and stabilise the region — producing the June 2025 DRC-Rwanda peace deal and new US mining investment agreements [12]. China dominates refining capacity for cobalt, graphite, and rare earths, a concentration that has raised alarm in Washington. The US will support transparency frameworks that open DRC minerals to Western companies, but will resist enforcement architecture that meaningfully constrains American corporate actors.

- The European Union (EU)

  The EU arrives with the most developed legal architecture, including the

2017/821 Conflict Minerals Regulation, the 2024 Critical Raw Materials Act, and mineral partnerships across the region. But it carried a credibility problem. The EU signed a minerals MOU with Rwanda in February 2024, a decision the DRC characterised as resource looting, given Rwanda's troubled history with Congo concerning mineral resources. Internally, member states are not aligned: France and Belgium have live enforcement interests given the Apple criminal complaints; Germany's EV manufacturing base creates supply pressures that sit uneasily with human rights obligations. The EU will support expanding due diligence to cover cobalt, but will resist anything that meaningfully disrupts the mineral flows its green transition depends on [13].

- China and BRICS (a bloc of countries including China, Russia, and South Africa)

  China's position is structurally unlike every other actor's because it is simultaneously the dominant processor, investor, and corporate presence in DRC mining. CMOC's two DRC assets — Tenke Fungurume and Kisanfu — saw the company's global cobalt market share rise from 24% in 2023 to 41% in 2024 [14]. Beijing will resist any framework that adds compliance costs to its operations or hands Western companies a governance-based argument for preferential mineral access, preferring to argue that infrastructure investment is a more respectful partnership model than Western conditionality. Within BRICS, Russia will resist stronger UN enforcement mechanisms, while Brazil and India will be wary of due diligence frameworks that could later be applied to their own extractive sectors.

- The African Union (AU)

  The AU's position is anchored in the Africa Mining Vision, a continental framework insisting African nations must move up the value chain rather than export raw

materials to be enriched elsewhere. Zimbabwe banned exports of unprocessed lithium ore in December 2022, Namibia implemented a similar ban on lithium in June 2023, and Malawi announced a ban on all raw mineral exports in October 2025 something the AU sees as a model, not an exception.[1] The AU pushes hard for committee outcomes that include in-country processing commitments and development financing, and view supply chain traceability alone as a mechanism that benefits downstream Western consumers more than African producers.

IX. Questions to Consider

- Delegates should keep in mind potential solutions to the mineral crisis through not only targeting armed groups and the illegal mineral trade itself, but also the corporations and individuals overseas who purchase and produce using the resources. **How can you address the mineral crisis at its core without simply kicking the can further down the road?**
- **How can your country manage its support of conflict minerals in industry? (Regulation, Legal frameworks)**
- If your country produces minerals: **What are steps your country can take to prevent militia groups from forming? How can your country legitimize the mining industry (reduce artisanal operations)?**
- **How does the international community allow the DRC to benefit from its raw materials?**
- **What frameworks must be produced to reduce child labor?** (Blanket bans on child labor have proven incredibly ineffective.)

When thinking about solutions, here are a couple of questions to keep in mind:

- **Is the solution relevant?** Does it address at least one of the issues above? Does it overlap with other committees' roles?
- **Is the solution implementable?** Does it require money? Does it call for enforcement? Does it establish recommendations? (Again, this committee has no enforcement power and monetary requests should be avoided)
- **Is the solution supportable?** Will your country like it? Will other countries like it? Does it align with UN values?
- **Is the solution unique?** Does it solve an issue in a different way? Does it use a resource that hasn't been used yet? Does it have a big impact while using little effort?

X. Suggested Reading (optional)

- Conflict Minerals: What can the mining industry do? (The Guardian)
- Who profits from conflict in the Democratic Republic of the Congo? (Universidad De Navarra)
- Due Diligence Guidelines (United Nations)

XI. Delegates List

1. Democratic Republic of the Congo
2. China
3. United States
4. Germany
5. France
6. Switzerland
7. Rwanda
8. Uganda
9. Zambia
10. Angola
11. South Africa
12. Canada
13. Australia
14. Japan
15. South Korea
16. Indonesia
17. India
18. Brazil
19. United Kingdom
20. Belgium
21. Norway
22. Sweden
23. Finland
24. United Arab Emirates
25. Saudi Arabia
26. Kenya
27. Tanzania
28. Nigeria
29. Ghana
30. Russia
31. Chile
32. Mexico
33. Singapore
34. Netherlands
35. Vietnam
36. Italy
37. Spain
38. Türkiye
39. Qatar

40. Israel
41. Malaysia
42. Thailand
43. Egypt
44. Ethiopia
45. Republic of the Congo
46. Burundi
47. Zimbabwe
48. Colombia
49. Philippines
50. Argentina
51. Madagascar
52. Morocco
53. Cuba
54. Botswana
55. Cameroon
56. Malawi
57. Mozambique

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